

insured.

Here, the court agrees that Plaintiffs' position is legally unsupported. Plaintiffs cite no law permitting a trial court, in an action against an insured defendant, to adjudicate an insurer's alleged obligation to pay damages in excess of policy limits based on an alleged violation of CCP section 999, and Plaintiffs offer no explanation as to why existing law should be extended to authorize such relief.

Plaintiffs argued in their opposition "[t]he Court *must* decide this issue at the damages phase of trial, outside the jury's purview, and the Plaintiffs have direct standing to determine their theories of recovery for damages," citing to CCP section 2017.210 and *Haynes v. Farmers Ins. Exchange* (2004) 32 Cal.4th 1198. (See Opp. 3:17-21 [emphasis original].) Neither authority supports Plaintiffs' position. CCP section 2017.210 permits discovery of the existence and contents of liability insurance that may be available to satisfy a judgment; it does not authorize a court to adjudicate insurance coverage or bad faith liability in an action against the insured. *Haynes* involved a declaratory relief action brought directly against a liability insurer, and the issue of standing was neither raised nor analyzed.

Plaintiffs fail to establish an actual and present controversy between themselves and KW sufficient to support declaratory relief under CCP section 1060. Plaintiffs also do not demonstrate that a declaration would be necessary or proper under the circumstances. Therefore, CCP section 1061 provides an independent basis for declining declaratory relief.

Although it is not clear what additional facts Plaintiffs could allege to cure the defect, the court grants leave to amend to afford Plaintiffs an opportunity to attempt to state a cognizable cause of action for declaratory relief against KW. (See *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227 ["Liberality in permitting amendment is the rule, if a fair opportunity to correct has not been given."].) Absent new or different factual allegations, the court is skeptical that Plaintiffs can do so.

Disposition

Defendant Guardian/KW Hilltop, LLC's demurrer to the First Amended Complaint is overruled as to the fifth and seventh causes of action and sustained with leave to amend as to the ninth cause of action. Defendant shall prepare the order and serve notice of entry. Plaintiff shall have 30 days from service of notice of entry to file an amended complaint.

10. 9:00 AM CASE NUMBER: C25-01931
CASE NAME: NOEL LINARES VS. THI TRANG NGUYEN
***HEARING ON MOTION IN RE: TRIAL PREFERENCE**
FILED BY: LINARES, NOEL
TENTATIVE RULING:

The law requires proof of service of a motion to give notice of the time and date of the hearing as well as the department, if the department is known. (See CCP 1010; California Rules of Court, rule 3.1203.) Here, plaintiff never gave notice of the date, time and time of the motion, nor of the department where the motion would be heard. As such the motion is continued to January 16, 2026, at 9 a.m. so that Plaintiff can give proper notice.